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Judgment Sheet
**IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT**

Criminal Appeal No.784-ATA of 2018
(Syed Aoun Muhammad Vs. The State and another)

JUDGMENT.

Date of hearing: 12.11.2019.
Appellant by: Malik Muhammad Ahsan Karol, Advocate.
State by: Mr. Muhammad Ali Shahab, Deputy Prosecutor General.

SADIQ MAHMUD KHURRAM, J.— The appellant namely Syed Aoun Muhammad son of Syed Basharat Hussain (convict) was tried by the learned Judge, Anti-Terrorism Court-I, Multan, in case FIR No.19 of 2018, dated 10.06.2018, registered at Police Station CTD Multan, in respect of offences under sections 4 and 5 of the Explosive Substances Act, 1908, under section 13-(2) (a) of the Arms Ordinance, 1965 (Ord. XX of 1965) and section 7 of the Anti-Terrorism Act, 1997. The learned trial court vide judgment dated **07.09.2018** convicted Syed Aoun Muhammad son of Syed Basharat Hussain (convict) and sentenced him as infra:

“Under section 5 of the Explosive Substances Act, 1908:
Rigorous imprisonment of two years and forfeiture of all moveable and immoveable properties of the appellant under section 5-A of the Explosive Substances Act, 1908.

Under section 13-(2) (a) of the Arms Ordinance, 1965 (Ord. XX of 1965):

Rigorous imprisonment of two years and directed to pay fine of Rs.50,000/- and in default thereof to further undergo simple imprisonment for two months.

The appellant, however, was acquitted of the charge under section 7 of the Anti-Terrorism Act, 1997 by the learned trial court.

The appellant was also extended the benefits provided under section 382-B of the Code of Criminal Procedure, 1898 and both the sentences were ordered to run concurrently.”

2. Feeling aggrieved, Syed Aoun Muhammad son of Syed Basharat Hussain (convict) lodged the instant Criminal Appeal No.784-ATA of 2018 against his conviction and sentences.

3. Precisely the facts necessary, as divulged in the statement of Muhammad Asif 34/CPL, (PW-1) are as under:

“On 10.06.2018, I was posted at Police Station CTD Multan. On the same day, I as a crime scene manager alongwith Muhammad Ikram 40/CPL, Rashid Ali Javed 794/CPL, Shah Jahan 796/CPL and operation team while riding on officials vehicles present at Raza Abad Chowk Suraj Miani Road, Multan. Information received through source that one terrorist belonging to proscribed organization Sipah-e-Muhammad having arms and explosive material with intent of attack on important installations and peoples of opponents sects. If raid conducted, he would be apprehended. I considered the information of the source as reliable. After briefing the operation team and investigation team, we reached at Ghous ul Azam Road near Fazal Nursery Farm. On the pointation of source, accused was encircle and apprehended. On interrogation, accused disclosed his name as Syed Aun Muhammad Rizvi son of Syed Basharat Husain Rizvi Caste Syed Rizvi resident of Agency Chowk, Umar Academy Tehsil & District Sialkot, On his personal search, one waist belt, one pistol P-1, (in working condition) was recovered. On unloaded the pistol, six live bullets (P-2/1-6), one hand grenade P-3 in working condition from the belt of pistol alongwith detonating assembly. On his further personal search, Rs.1800/- from front pocket were recovered. Accused created sense of fear and insecurity among the society. I placed the hand grenade on a safe distance and cordoned off the area. I also summoned the BDT at the place of occurrence. I prepared complaint Ex.PA and sent the same through Shah Jahan Saqib 796/CPL to Police Station CTD Multan for registration of FIR.”

4. After the formal investigation of the case report under section 173 of the Code of Criminal Procedure, 1898 was submitted before the learned trial court wherein the appellant was sent to face trial. The learned trial court framed charges against the appellant on 20.08.2018 to which he pleaded not guilty and the learned trial court proceeded to examine the prosecution witnesses.

5. The prosecution in order to prove its case got recorded statements of **six** witnesses. Muhammad Asif 34/CPL (PW-1) and Muhammad Ikram 40/CPL (PW-5) were the eye witnesses of the occurrence and also the witnesses of the recoveries made from the appellant in the case. Muhammad Amin, BDT, Civil Defense Officer, Multan (PW-4) stated that on 10.06.2018 he defused the hand

grenade and also obtained sample of the explosive from the defused hand grenade and handed over the same to the Investigating Officer. He further stated that on the same day he prepared the report regarding defusing of hand grenade ((Exh.PC) and the report regarding drawing of the sample for analysis (Exh.PD) and handed over the same to the Investigating Officer. Amjad Khalil 802/CPL (PW-2) stated that on 10.06.2018 he recorded the formal FIR (Exh.PA/1) and received the case property from the Investigating Officer and on the same day handed over two sealed parcels said to contain a pistol and sample of explosive material to Arslan Ibrahim 789/CPL (PW-3) for their onward transmission to the office of the Punjab Forensic Science Agency. Latif Ahmad, Inspector (PW-6) investigated the case from 10.06.2018 till 30.06.2018 and detailed the facts of the investigation conducted by him in his statement before the learned trial court.

6. On 06.09.2018, the learned DPG gave up PWs Rashid Ali Javed and Shah Jahan Saqib, Corporals, being unnecessary and closed the prosecution evidence after tendering in evidence the reports of Punjab Forensic Science Agency (Exh.PH and (Exh.PJ), notification of Punjab Forensic Science Agency, Lahore (Mark-A), notification of proscribed organizations (Mark-B) and cancellation report of FIR No. 595 of 2018 (Mark-B/1).

7. After the closure of prosecution evidence, the learned trial court examined Syed Aoun Muhammad son of Syed Basharat Hussain (appellant) under section 342 Cr.P.C. and in answer to question “*why this case against you and why the PWs have deposed against you*”, the appellant claimed that he had been falsely involved in this case and was innocent. The appellant further claimed that he was apprehended by police officials on 03.05.2018 and subsequently was shown to be arrested on 10.06.2018 in this case. The appellant opted not to get himself examined under Section 340(2) Cr.P.C. however produced copy of FIR No. 595 of 2018 (Mark-C), copy of application to SHO (Mark-D), copy of application to I.G (Mark-E), copy of application to Additional I.G/RPO (Mark-F) and copy of online complaint (Mark-G) in his defence.

8. On the conclusion of the trial, learned Judge, Anti-Terrorism Court-I, Multan, convicted and sentenced the appellant as referred to above.

9. The contention of the learned counsel for the appellant precisely is that whole case is fabricated and false. The learned counsel contended that the

prosecution remained unable to prove the facts and did not produce any unimpeachable, admissible and relevant evidence. The learned counsel further contended that the statements of prosecution witnesses are not worthy of reliance. The learned counsel also argued that there was no corroborative evidence supportive of the prosecution case. The learned counsel finally submitted that the prosecution has totally failed to prove the case against the accused beyond the shadow of doubt and prayed for acceptance of appeal lodged by the appellant.

10. On the other hand, learned Deputy Prosecutor General appearing on behalf of the State contended that the prosecution has proved its case beyond shadow of doubt by producing truthful witnesses and submitted that it was a promptly lodged FIR and the appellant was named therein with specific allegation of possessing hand grenade, which excludes the element of deliberation and consultation about his involvement in the instant case; that the appellant was caught red-handed, which clearly connected him with the commission of crime; that the police officers, who furnished ocular account before the learned trial court, had no enmity, grudge or malice against the appellant to implicate him in this case of heinous nature and even otherwise, the defence has not brought on record any ulterior motive of the police to depose falsely against the appellant, as such they are as good witnesses as the private persons would be; that the ocular account is furnished by the trustworthy and reliable witnesses and that is duly corroborated by the recoveries effected from the appellant; the prosecution case against the appellant stands proved from all angles, hence, prayed for dismissal of the appeal filed by the appellant and maintaining the conviction and sentences awarded to him by the learned trial court.

11. We have considered the arguments advanced by the learned counsel for the appellant and the learned Deputy Prosecutor General for the State and have gone through the entire record with their able assistance.

12. We have observed that the perusal of the written complaint (Exh.PA) and the FIR (Exh.PA/1) shows that initially Syed Aoun Muhammad son of Syed Basharat Hussain, appellant, was apprehended by Muhammad Asif 34/CPL (PW-1) alongwith other police officers/officials on 10.06.2018, at 6.00 p.m. and at the time of his arrest, one pistol (Exh. P-1), six live bullets (Exh.P-2/1-6) and one hand grenade (Exh.P-3) alongwith detonating assembly were recovered which were taken into possession vide recovery memo Exh.PE by the Investigating

Officer, namely, Latif Ahmad Inspector, (PW-6). As a consequence FIR No.19 of 2018 (Exh.PA/1), dated 10.06.2018, was registered at Police Station CTD Multan, in respect of offences under sections 4 and 5 of the Explosive Substances Act, 1908, under section 13-(2) (a) of the Arms Ordinance, 1965 (Ord. XX of 1965) and section 7 of the Anti-Terrorism Act, 1997. Muhammad Asif 34/CPL (PW-1) drafted the written complaint (Exh.PA) at 6:00 p.m and forwarded the same to the Police Station, CTD, Multan, which was situated at a distance of 3 kilometers from the place of occurrence. Consequently, FIR (Exh.PA/1) was lodged against the appellant at 06:10 p.m., within a span of short time of ten minutes. Thus, it is apparent that the FIR (Exh.PA/1) was got lodged within a short duration and the complainant has not only named the appellant, but has also mentioned each and every minor as well as material fact of the incident therein, which of course excludes the possibility of deliberation or consultation regarding false implication of the appellant in the instant case.

13. The prosecution has proved its case against the appellant through the statements of Muhammad Asif 34/CPL (PW-1) and Muhammad Ikram 40/CPL (PW-5), recoveries made from the appellant and the positive reports of Punjab Forensic Science Agency (Exh.PH and Exh.PJ) and EOD/IED Recovery report of Bomb Disposal Commander, Civil Defence, Multan (Exh.PC) as prepared by Muhammad Amin, BDT, Civil Defense Officer, Multan (PW-4). The details of the occurrence have already been mentioned in paragraph No.3 of the judgment. In his statement before the learned trial court as PW-1, Muhammad Asif 34/CPL, complainant, reiterated the same facts and leveled the same allegations as are incorporated in the written complaint (Exh.PA) and in the FIR (Exh.PA/1). In order to support the deposition of Muhammad Asif 34/CPL (PW-1), the prosecution has relied on the statement of Muhammad Ikram 40/CPL (PW-5). Both these witnesses have consistently corroborated the version adopted by each other and after careful scrutiny of the statements of above said prosecution witnesses, namely, Muhammad Asif 34/CPL (PW-1) and Muhammad Ikram 40/CPL (PW-5), we find that their statements are in line with each other on each and every minor as well as material aspect of the case and smooth flow of facts is apparent from their depositions. They were subjected to lengthy cross-examination by the defence, but without extracting anything beneficial for the appellant. During arguments, learned counsel for the appellant has emphatically urged that Muhammad Asif 34/CPL (PW-1) and Muhammad Ikram 40/CPL (PW-5) were

both police employees and the prosecution has failed to produce even a single private person in support of its case. As regards this point urged by the learned counsel for the appellant before us, suffice it to say that jurisprudence on these issues is very well settled by now. Section 19A of the Anti-terrorism Act, 1997 excludes the applicability of section 103, Cr.P.C. therefore, association of witnesses from the public is not mandatory. Section 19A of the Anti-terrorism Act, 1997 reads as under:-

“19A. Mode of making searches and arrest. The provisions of the Code, except that of section 103, shall mutatis mutandis, apply to all searches and arrest by police officer and an officer of equivalent rank of the law enforcement agencies made under this Act”.

We would like to observe here that the police witnesses are as good witnesses as any other witness until and unless the defence could have successfully shattered their credibility or brought on record any mala fide of police witnesses to depose against the accused. In the instant case, all the witnesses of ocular account stood firm to the test of cross-examination and their credibility could not be shaken by the defence. More so, during trial before the learned trial court and even today before this Court, learned counsel for the appellant has not urged any rancor or animosity of Muhammad Asif 34/CPL (PW-1) and Muhammad Ikram 40/CPL (PW-5) with the appellant, as such, we are fully satisfied that their statements are free of *mala-fides*. We would, therefore, like to hold that the depositions of police witnesses cannot be brushed aside merely on the bald allegation that they happened to be employees of police department. Coming to the question about non-production of any private witness by the prosecution to support its case, we are of the opinion that in cases like the one in hands, people from public try not to indulge themselves as witnesses of the occurrence so as to avoid future enmity with the terrorists. Even otherwise, the prosecution has produced sufficient evidence before the learned trial court to prove ocular account of its case, so it was not under obligation to produce any witness from public that too when it had already produced two police officers, who were as independent witnesses as the private persons may be, because they had also no enmity, ill-will grudge or ulterior motive to depose falsely against the appellant. The outcome of above discussion is that Muhammad Asif 34/CPL (PW-1) and Muhammad Ikram 40/CPL (PW-5) have successfully proved their credence, therefore, the learned trial court was quite

justified to rely on them while awarding conviction and sentences to the appellant and we also do not find any spite with the prosecution witnesses so as to consider their testimony unworthy of reliance.

14. We have also observed that as per the written complaint (Exh.PA) and the FIR (Exh.PA/1) initially Syed Aoun Muhammad appellant, was arrested by Muhammad Asif 34/CPL (PW-1) alongwith other police officers/officials on 10.06.2018, at 6.00 p.m. and at the time of his arrest, one pistol (Exh. P-1), six live bullets (Exh.P-2/1-6) and one hand grenade (Exh.P-3) alongwith detonating assembly were recovered which were taken into possession vide recovery memo (Exh.PE), by the Investigating Officer, namely, Latif Ahmad, Inspector (PW-6). In this respect, the report of the EOD/IED Recovery report of Bomb Disposal Commander, Civil Defence, Multan (Exh.PC) as prepared by Muhammad Amin, BDT, Civil Defense Officer, Multan (PW-4) is also available on record, which proved that the above hand grenade, if not recovered from the appellant, could have been used for wreaking havoc upon innocent persons. The above recovery has successfully been proved by the prosecution through the statements of Muhammad Asif 34/CPL (PW-1) and Muhammad Ikram 40/CPL (PW-5), whom we have already held trustworthy and reliable witnesses. Furthermore, the explosive material from the hand grenades which was taken as sample was sent to the office of Punjab Forensic Science Agency, whose report is also available on record as Exh.PJ. As per the said report of the Punjab Forensic Science Agency (Exh.PJ) in the items submitted for analysis, Trinitrotoluene (TNT) was identified which is a high explosive.

15. We have gone through the statements of the appellant recorded by the learned trial court under section 342, Cr.P.C. and found that no plausible justification has been forwarded by him for keeping the above hand grenade in his custody. The appellant made no effort to prove his claim that he was apprehended by police officials on 03.05.2018 and subsequently was shown to be arrested on 10.06.2018 in this case. The said claim of the appellant is also not discernable from the perusal of the prosecution evidence. The recovery of aforementioned hand grenade from the appellant has, therefore, provided enough corroboration to the ocular evidence of Muhammad Asif 34/CPL (PW-1) and Muhammad Ikram 40/CPL (PW-5) so as to prove his guilt to the hilt.

16. After evaluating the case from all angles, we have come to a definite conclusion that the prosecution has successfully proved its case against the appellant who was caught red-handed and one pistol (Exh. P-1), six live bullets (Exh.P-2/1-6) and one hand grenade (Exh.P-3) alongwith detonating assembly were recovered from his possession. There is no element of doubt in the case in hand, the statements of Muhammad Asif 34/CPL (PW-1) and Muhammad Ikram 40/CPL (PW-5) inspired confidence and nothing is available on record which could establish that these witnesses deposed against the appellant and implicated him in this case due to previous enmity, grudge or malice or to fulfill some ulterior motive. The ocular evidence is not only corroborated by the recoveries effected from the appellant at the time of his arrest in the instant case, but the positive reports of EOD/IED Recovery report of Bomb Disposal Commander, Civil Defence, Multan (Exh.PC) as prepared by Muhammad Amin, BDT, Civil Defense Officer, Multan (PW-4) and Punjab Forensic Science Agency (Exh.PH and Exh.PJ) have also strengthened the claim of the prosecution that the appellant was planning to do something extremely inhumane in the shape of terrorist attacks.

17. We, as a result of the above discussion, are of the considered view that the prosecution has successfully proved its case against the appellant beyond any shadow of reasonable doubt. The defence has miserably failed to extract any material discrepancies or contradictions from the statements of the prosecution witnesses. Accordingly, we dismiss this appeal and uphold the impugned judgment passed by the learned Judge, Anti-Terrorism Court-I, Multan.

18. The case property shall be dealt with as directed by the learned trial court. The record of the learned trial court be sent down immediately.

(TARIQ SALEEM SHEIKH)
JUDGE

(SADIQ MAHMUD KHURRAM)
JUDGE

*Raheel**

Approved for Reporting

Judge